

HOUSE No. 4548

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 29, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1148) of Rodney M. Elliott, James B. Eldridge and others relative to the practice and insurance coverage of acupuncture, reports recommending that the accompanying bill (House, No. 4548) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the practice of acupuncture.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 2. Chapter 111 of the General Laws is hereby amended by adding the
2 following section:-

3 Section 249. There shall be a commission on acupuncture and wellness within the
4 department. The commission shall consist of: the commissioner of public health or the
5 commissioner's designee, who shall chair the commission; the commissioner of insurance or the
6 commissioner's designee; the director of MassHealth or the director's designee; the director of
7 the board of registration in medicine or the director's designee; the senate chair of the joint
8 committee on public health; the house chair of the joint committee on public health; a member
9 representing a statewide organization of licensed acupuncturists; a member representing a
10 statewide organization of medical acupuncturists; a member representing the Massachusetts
11 Public Health Association; and 5 members to be selected by the Governor including: no fewer
12 than 2 acupuncturists, licensed and practicing in the state of Massachusetts; a member
13 representing one of the top five health insurance companies in Massachusetts according to

market share, a member representing a health care consumer organization, and a member currently practicing as a licensed physician in Massachusetts.

The commission on acupuncture and wellness shall make an investigation and comprehensive study of the potential for better integrated use of acupuncture services to expand access, reduce health care costs, and provide improved quality of care to Massachusetts residents. The commission shall:

(1) Consider strategies to evaluate and implement effective integration of acupuncture services in health care delivery in Massachusetts with specific focus on interventions in pain management, substance abuse treatment, and wellness promotion.

(2) Consider strategies to effectively integrate acupuncture treatment modalities into alternative payment models, including, but not limited to, accountable care organizations, workplace wellness programs and provider organizations established under chapter 224 of the acts of 2012.

(3) Consider strategies regarding reimbursement of licensed acupuncturists via third party payors or otherwise to facilitate a stable and sustainable integration of acupuncture services into the broader system of health care delivery.

The commission on acupuncture and wellness shall submit to the secretary of health and human services and the joint committee public health, six months after the effective date of this act and annually thereafter, a report that includes findings from the commission's review along with recommendations and any suggested legislation to implement those recommendations.

SECTION 3. Said chapter 175 is hereby amended by inserting before section 47CCC the following section:-

Section 47AAA. (a) Any blanket or general policy of insurance described in subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth, during the period within which this premium is effective, or any policy of accident or sickness insurance as described in section one hundred and eight which provides hospital expense and surgical expense insurance and which is delivered or issued for delivery or subsequently renewed by agreement between the insurer and the policyholder in the commonwealth, during the period within which this provision is effective, or any employers' health and welfare fund which provides hospital expense and surgical expense benefits and which is issued or renewed to any person or group of persons in the commonwealth, during the period within which this provision is effective, shall provide benefits for acupuncture and oriental medicine based diagnosis and treatment in the areas of pain management, post-traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 4. Chapter 175 is hereby further amended by inserting after section 205 the following section:-

Section 205A. (a) The commissioner shall not approve a policy under section 205 that does not provide benefits for acupuncture and oriental medicine based diagnosis and treatment in the areas of pain management, post-traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 5. Chapter 176A of the General Laws is hereby amended by inserting after section 8DDD the following section:-

Section 8EEE. (a) Any contract between a subscriber and the corporation under an individual or group hospital service plan delivered, issued or renewed in the commonwealth shall provide as benefits to all individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the commonwealth acupuncture and oriental medicine based diagnosis and treatment in the areas of pain management, post-traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 6. Chapter 176B of the General Laws is hereby amended by inserting after section 4DDD the following section:-

Section 4EEE. (a) Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed in the commonwealth shall provide benefits to all individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the commonwealth for acupuncture and oriental medicine based diagnosis and treatment in the areas of pain management, post-traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 7. Chapter 176G of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. (a) Any group health maintenance contract shall provide coverage for acupuncture and oriental medicine-based diagnosis and treatment in the areas of pain management, post-traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
Section 17Z the following section:-

Section 17AA. The commission shall provide to an active or retired employee of the
commonwealth who is insured under the group insurance commission coverage for acupuncture
and oriental medicine-based diagnosis and treatment in the areas of pain management, post-
traumatic stress disorder, substance abuse treatment, and nausea.

SECTION 8. Notwithstanding any general or special law to the contrary, no third-party
payer of health care services shall differentiate reimbursement rates for acupuncture services by
provider type. Only licensed acupuncturists or medical doctors shall be reimbursed for
acupuncture services.